No. 97-930

Supreme Court, U.S.
FILED
APR 30 1998
CLERK

IN THE SUPREME COURT OF THE UNITED STATES

October Term, 1997

VICTORIA BUCKLEY, Colorado Secretary of State,
Petitioner,

vs.

AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC.; DAVID AITKEN; JON BARAGA; CRAIG ELEY; JACK HAWKINS; LONNIE HAYNES; ALDEN KAUTZ; and BILL ORR, individually and as guardian of WILLIAM DAVID ORR,
Respondents.

On Petition for Writ of Certiorari
to the United States Court of Appeals
For the Tenth Circuit

JOINT APPENDIX

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Petition for Certiorari filed: December 4, 1997
Petition for Certiorari granted: February 23, 1998

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RELEVANT DOCKET ENTRIES
U.S. DISTRICT COURT
FOR THE DISTRICT OF COLORADO
CASE NO. 93-CV-1467

Date	Action
7/13/93	Verified Joint COMPLAINT (summons(es) issued) (ns)
7/13/93	Verified Joint MOTION by Amer Constl Law Fdn, David Aitken, Jon Baraga, Craig C. Eley, Jack Hawkins, Lonnie Haynes, Alden Krautz, Bill Orr, William David Orr for temporary restraining order (ns)
7/13/93	BRIEF by Amer Constl Law Fdn, David Aitken, Jon Baraga, Craig C. Eley, Jack Hawkins, Lonnie Haynes, Alden Kautz, Bill Orr, William David Orr in support of motion for temporary restraining order [2-1] (ns)
7/13/93	MINUTE ORDER : by Judge Richard P. Matsch setting hearing on motion for temporary restraining order [2-1] 9:00 7/19/93 (cc: all counsel) ; entry date : 7/13/93 (yk)
7/15/93	NOTICE by plaintiffs to dfts of setting of hearing by the court. (pa) (Entry date 07/16/93)
7/15/93	MOTION by plaintiffs for order to consolidate prel injunction with a permanent injunction. Compliance w/ LR 7.1 (pa) [Entry date 07/16/93]

Date	Action
7/16/93	BRIEF by defendant Natalie Meyer in opposition to motion for temporary restraining order [2-1] (pa) [Entry date 07/19/93]
7/16/93	SUPPLEMENT by plaintiff Bill Orr brief in support of preliminary injunction (pa) [Entry date 07/19/93]
7/16/93	MOTION by Mike Feeley, defendant Doulgas - Brown to quash subpoenas to testify and cert of compliance (pa) [Entry date 07/19/93]
7/19/93	REPLY by plaintiff Bill Orr to Deft's Oppos Brief response to motion for temporary restraining order [2-1]. (sh)
7/19/93	COURTROOM MINUTES by Judge Richard P. Matsch finding the motion to quash subpoenas to testify [11-1] moot. denying motion for order to consolidate prel injunction with a permanent injunction [7-1] denying motion for temporary restraining order [2-1] terminating party Douglas (I) Brown, party Doulgas - Brown; entry date : 7/19/93 (pa)
7/19/93	ORDER by Judge Richard P. Matsch denying motion for preliminary injunction (TRO) [2-1] (cc: all counsel); entry date : 7/19/93 (pa)
7/26/93	TRANSCRIPT of proceedings of 7/19/93 (40 pages) (yk)

Date	Action
7/29/93	ANSWER by defendant Natalie Meyer, defendant Natalie (I) Meyer complaint [1-1] (yk) [Entry date 07/30/93]
7/30/93	MOTION by plaintiff Amer Constl Law Fdn, plaintiff David Aitken, plaintiff Jon Baraga, plaintiff Craig C. Eley, plaintiff Jack Hawkins, plaintiff Lonnie Haynes, plaintiff Alden Kautz, plaintiff Bill Orr, plaintiff William David Orr to toll time to submit referendum petition pending appeal of denial of prel injunc (yk) [Entry date 08/02/93]
8/2/93	ORDER by Judge Richard P. Matsch denying motion to toll time to submit referendum petition pending appeal of denial of prel injunc [16-1] (cc: all counsel) ; entry date : 8/3/93 (pa) [Entry date 08/03/93]
8/4/93	NOTICE OF APPEAL by plaintiffs in re order [13-1] ; Notice of transcript order form due 8/16/93 ; Notice mailed to all counsel on 8/4/93 (gc)
8/4/93	$100.00 fee and $5.00 fee paid. Receipt No 153152. re appeal [18-1] (gc)
8/5/93	NOTICE OF TRANSCRIPT ORDER FORM filed by plaintiffs/appellants (Form indicates transcript of 7/19/93 is ordered... There is a complete transcript on file for 7/19/93 hearing) ; re appeal [18-1] (gc) [Entry date 08/06/93]

Date	Action
8/6/93	LETTER (re: [18-1] to USCA and all counsel advising that record is now complete...transcript which tof indicates is being ordered was completed and filed on 7/26/93 (gc)
8/11/93	Case No. 93-1274 assigned by the Court of Appeals. [18-1] (gc)
8/13/93	NOTICE OF TRANSCRIPT ORDER FORM filed by Court Reporter Supervisor, indicating transcript of 7/19/93 ordered was filed with court on 7/26/93; re appeal [18-1] (gc)
8/17/93	NOTICE OF DISMISSAL as to party Douglas (I) Brown party Doulgas - Brown ; entry date : 8/18/93 (pa) [Entry date 08/18/93]
8/18/93	ORDER by Judge Richard P. Matsch. Douglas Brown is dismissed from this action. (cc: all counsel) ; entry date : 8/19/93 (gc) [Entry date 08/19/93]
9/17/93	COURTROOM MINUTES (Rule 16 Conf) by Judge Richard P. Matsch; rule 16 conf held at 3:30 9/17/93; discovery order approved w/stipulated modifications; cnsl to contact court when ready for pretrial conf and trial date; entry date : 9/20/93 (tp) [Entry date 09/20/93]
11/10/93	MOTION by Paul Grant to intervene Paul Grant as pla (tp)

Date	Action
11/10/93	ORDER by Judge Richard P. Matsch. Parties to respond to Paul Grant's motion to intervene [30-1] by 11/26/93 (cc: all counsel) ; entry date : 11/15/93 (gc) [Entry date 11/15/93]
11/19/93	RESPONSE by plaintiffs to motion to intervene Paul Grant as pla [30-1] (gc) [Entry date 11/22/93]
11/22/93	RESPONSE by plaintiff Bill Orr to motion to intervene Paul Grant as pla [30-1] (gc)
11/24/93	RESPONSE by Natalie Meyer, Natalie (I) Meyer to motion to intervene Paul Grant as pla [30-1] (gc) [Entry date 11/29/93]
11/30/93	Joint MOTION by plaintiff Bill Orr to amend complaint (gc) [Entry date 12/02/93]
12/30/93	RESPONSE by defendant Natalie Meyer, defendant Natalie (I) Meyer to motion to amend complaint [36-1]. (Defts do not object to the Joint Motion to amend complaint) (pa) [Entry date 01/04/94]
12/30/93	ANSWER by defendant Natalie Meyer, defendant Natalie (I) Meyer amended complaint [1-1] (Amended Complaint not filed) (pa) [Entry date 01/04/94]
2/16/94	AMENDMENT by Paul Grant to motion to intervene Paul Grant as pla [30-1] (gc) [Entry date 02/17/94]

Date	Action
2/18/94	ORDER by Judge Richard P. Matsch All other parties are to respond to amended [30-1] motion to intervene Paul Grant as pla by 2/28/94 (cc: all counsel) ; entry date : 2/22/94 (gc) [Entry date 2/22/94]
2/25/94	RESPONSE by plaintiffs (except Orr) to amended motion to intervene Paul Grant as pla [30-1] (gc) [Entry date 02/28/94]
2/28/94	Objection (RESPONSE) by defendants to amended motion to intervene Paul Grant as pla [30-1] (gc) [Entry date 03/01/94]
3/18/94	COURTROOM MINUTES by Judge Richard P. Matsch ; pretrial conf held 3/18/94 denying amended motion to intervene Paul Grant as pla [30-1], schg ; 3 day court trial set for 6/27/94 ; pto ddl set for 5/27/94 ; disp mtn ddl set 5/2/94 ; entry date : 3/22/94 (gc) [Entry date 03/22/94]
3/21/94	ORDER by Judge Richard P. Matsch ; court trial set for 8:30 6/27/94. Stipulated pto due 5/27/94. (cc: all counsel) ; entry date : 3/22/94 (gc) [Entry date 03/22/94]
5/2/94	BRIEF by defendant in support of motion for summary judgment before Judge Richard P. Matsch [53-1] (gc) [Entry date 05/03/94]

Date	Action
5/2/94	MINUTE ORDER : by Judge Richard P. Matsch granting plts' motion for extension of time to file motion for summary judgment to 5/9/94 [52-1] (cc: all counsel) ; entry date : 5/6/94 (gc) [Entry date 05/06/94]
5/3/94	Motion by defendant for summary judgment before Judge Richard P. Matsch (gc)
5/9/94	Combined Motion by plaintiffs for summary judgment before Judge Richard P. Matsch and Brief (gc) [Entry date 05/10/94]
5/16/94	RESPONSE by plaintiffs to motion for summary judgment before Judge Richard. P. Matsch [53-1] (gc) [Entry date 05/18/94]
5/26/94	RESPONSE (Answer Brief) by dft Natalie Meyer, Natalie (I) Meyer to motion for summary judgment before Judge Richard P. Matsch [56-1] (tp) [Entry date 06/01/94]
6/1/94	Stipulated PRE-TRIAL ORDER by Chief Judge Richard P. Matsch . . . pretrial conf held 3/18/94; motions for sum jgm pending; discovery; est length of trial to court is 3 days set 6/27/94 (cc: all counsel) (tp) [Entry date 06/02/94]
6/9/94	RESPONSE (Answer) by plaintiff Bill Orr, plaintiff William David Orr to dft's motion for summary judgment before Judge Richard P. Matsch [53-1] (tp)

Date	Action
6/9/94	APPENDIX filed by plas Bill Orr, William David Orr to answer to dft's motion for summary judgment before Judge Richard p. Matsch [53-1] (tp)
6/17/94	ORDER by Chief Judge Richard P. Matsch regarding [56-1] motion for summary judgment before Judge Richard P. Matsch, regarding [53-1] motion for summary judgment before Judge Richard P. Matsch . . . pending motions for sum jgm will be heard at conclusion of evidence at scheduled trial (cc: all counsel) ; entry date : 6/21/94 (tp) [Entry date 06/21/94]
6/27/94	COURTROOM MINUTES (Trial to Court - 1st Day) by Chief Judge Richard P. Matsch, ; court trial held 6/27/94; opening statements; witnesses; exhibits; entry date: 6/29/94 (tp) [Entry date 06/29/94]
6/28/94	COURTROOM MINUTES (Trial to Court - 2nd Day) by Chief Judge Richard P. Matsch . . . pla rests; witnesses; exhibits; dft rests; evidence is closed; entry date : 6/29/94 (tp) [Entry date 06/29/94]
6/29/94	COURTROOM MINUTES (Trial to Court - 3rd Day) by Chief Judge Richard P. Matsch . . . exhibits; closing arguments; matter stands submitted (exhibit list attached) ; entry date : 6/29/94 (tp)
7/1/94	Supplemental References and Questions (STATEMENT) by plaintiff Bill Orr (gc) [Entry date 07/05/94]

Date	Action
7/8/94	Partial TRANSCRIPT of Trial to Court, Day 2 before Judge Matsch on 6/28/94 (1-22 pages) (gc) [Entry date 07/11/94]
7/13/94	MOTION by plas Amer Constl Law Fdn, David Aitken, Jon Baraga, Craig C. Eley, Jack Hawkins, Lonnie Haynes, Alden Kautz, Bill Orr, William David Orr to supplement motion for summary judgment before Judge Richard P. Matsch [56-1], motion for summary judgment before Judge Richard P. Matsch [53-1] briefs and/or argument (tp) [Entry date 07/14/94]
7/20/94	OBJECTIONS by dft Natalie Meyer, Natalie (I) Meyer to supplemental sum jgm brief and pro se pla's suppl questions re motion to supplement motion for summary judgment before Judge Richard P. Matsch [56-1], motion for summary judgment before Judge Richard P. Matsch [53-1] [71-1] (tp) [Entry date 07/22/94]
8/19/94	MANDATE from the Court of Appeals; CA # 93-1274; Dt issued 8/18/94; ORDER AND JUDGMENT dated 7/27/94 affirming the decision of the District Court on appeal [18-1] (gc) [Entry date 08/22/94]

Date	Action
11/23/94	MEMORANDUM, OPINION, AND ORDER: by Chief Judge Richard P. Matsch finding the motion to supplement motion for summary judgment before Judge Richard P. Matsch [56-1], motion of summary judgment before Judge Richard P. Matsch [53-1] [71-1] moot; terminating motion for summary judgment before Judge Richard P. Matsch [56-1]; terminating motion for summary judgment before Judge Richard P. Matsch [53-1] . . . jgm will enter declaring the following provisions of CO Revised Statutes are invalid because they are in violation of 1st & 14th amd to US Constitution; ordering dft Secretary of State of State of CO permanently enjoined from enforcing those provisions: CRS 1-40-121(1) (Supp. 1994) to extent that it requires the proponents of a petition for the initiative or referendum to provide "the name, address, and county of voter registration of all circulators who were paid to circulate any section of the petition" and the names of circulators in reporting the amts paid to circulators; CRTS 1-40-121(2) (Supp. 1994) in its entirety; all other claims of plas shall be dismissed; plas have to 12/5/94 to file any claim for atty's fees under 42:1988 (cc: all counsel) ; entry date : 11/28/94 (tp) [Entry date 11/28/94]

Date	Action
11/23/94	JUDGMENT: by Clerk James R. Manspeaker regarding [71-1] Memo Opinion & Order . . . provisions of CO Revised Statutes are invalid as set forth in Memo Opinion & Order; all other claims are dismissed; no costs are awarded; finality of this jgm shall not be affected by any application for atty fees under 42:1988; dismissing case (cc: all counsel); entry date: 11/28/94 (tp) [Entry date 11/28/94]
12/8/94	NOTICE OF APPEAL by plaintiffs re: order [74-1] and judgment [75-2] of 11/23/94; Notice of transcript order form due 12/19/94 ; Notice mailed to all counsel on 12/8/94 (gc)
12/15/94	NOTICE OF APPEAL by Natalie Meyer re: order [74-1] and judgment [75-2] of 11/23/94; Notice of transcript order form due 12/27/94 ; Notice mailed to all counsel on 12/16/94 Fee Status: ($100 fee and $5 fee not paid) (gc) [Entry date 12/16/94]
12/16/94	NOTICE OF TRANSCRIPT ORDER FORM filed by plaintiffs/appellants ; (Transcript not necessary) appeal [78-1] (gc)
12/20/94	Case No. 94-1576 assigned by the Court of Appeals. [78-1] (gc) [Entry date 12/22/94]

Date	Action
12/21/94	ORDER by Chief Judge Richard P. Matsch granting motion to abate atty fees proceedings until completion of appellate process [82-1], that the motion for attorney's fees in amt of $33,757.50 pursuant to 42:1983 & 1988 [76-1] is abated (cc: all counsel) ; entry date : 12/23/94 (gc) [Entry date 12/23/94]
12/27/94	Case No. 94-1581 assigned by the Court of Appeals. [80-1] (gc) [Entry date 12/28/94]
3/1/95	REPORTER'S TRANSCRIPT of Trial to Court, Day 1 on 6/27/94 before Judge Matsch (Re: [80-1], [78-1]) Pgs 1-233 (Cert. Copy) (gc) [Entry date 03/06/95]
03/01/95	REPORTER'S TRANSCRIPT of Trial to Court, Day 2 on 6/28/94 before Judge Matsch (Re: [80-1], [78-1]) Pgs 1-211 (Cert. Copy) (gc) [Entry date 03/06/95]
03/06/95	LETTER (Re: [80-1], [78-1]) to USCA and all counsel advising that record is now complete . . . all transcripts ordered are now on file as of 3/1/95. (gc)
9/16/97	MANDATE from the Court of Appeals; CA# 94-1581 & 94-1576; Dt issued 9/16/97; JUDGMENT dated 7/28/97 affirming in part and reversing in part and remanding the decision of the District Court on appeal [80-1], appeal [78-1] (gc) [Entry date 09/19/97]

Date	Action
9/19/97	ORDER by Chief Judge Richard P. Matsch regarding [76-1] motion for attorney's fees in amt of $33,757.50 pursuant to 42:2983 & 1988, dfts to respond to mtn by 10/8/97 (cc: all counsel) ; entry date : 9/22/97 (lm) [Entry date 09/22/97]
9/29/97	ATTORNEY APPEARANCE for plaintiffs by Paul Kenneth Grant (lm)
12/16/97	NOTIFICATION from Court of Appeals regarding Petition for Writ of Certiorari Filed in US Supreme Court on 12/4/97 Case No. 97-930 (re appeal [80-1], (re appeal [78-1] (gc) [Entry date 12/17/97]
12/24/97	NOTIFICATION from Court of Appeals regarding Petition for Writ of Certiorari Filed in US Supreme Court on 12/16/97 Case No. 97-992 (re appeal [80-1], (re appeal [78-1] (gc)
3/3/98	NOTIFICATION from Court of Appeals regarding Petition for Writ of Certiorari petition denied on 2/23/98 re: appeal [80-1], [78-1] (gc) [Entry date 03/04/98]

RELEVANT DOCKET ENTRIES
U.S. COURT OF APPEALS
FOR THE TENTH CIRCUIT
CASE NO. 94-1576

12/16/94	[817805] Civil case docketed. Preliminary record filed. Transcript order form due 12/19/94 for Roxie English pursuant to R.42.1 Docketing statement due 12/27/94 for Bill Orr, for William David Orr, for Alden Kautz, for Lonnie Haynes, for Jack Hawkins, for Craig C. Eley, for Jon Baraga, for David Aitken, for Am Constitutional Notice of appearance due 12/27/94 for Douglas Brown, for Natalie Meyer, for Bill Orr, for William David Orr, for Alden Kautz, for Lonnie Haynes, for Jack Hawkins, for Craig C. Eley, for Jon Baraga, for David Aitken, for Am Constitutional (fg) [94-1576]
3/6/95	[836397] Filed notice record is complete 3/6/95. Appellant/Petitioner's brief due 12/27/94 in 94-1576, in 94-1581 Appellant/Petitioner's appendix due 12/27/94 in 94-1576, in 94-1581 (afw) [94-1576 94-1581]

3/6/95	[839105] Cross-appeal schedule set. A/Pet appendix due 4/17/95 for Bill Orr in 94-1576, for William David Orr in 94-1576, for Alden Kautz in 94-1576, for Lonnie Haynes in 94-1576, for Jack Hawkins in 94-1576, for Craig C. Eley in 94-1576, for Jon Baraga in 94-1576, for David Aitken in 94-1576, for Am Constitutional in 94-1576, for Bill Orr in 94-1581, for William David Orr in 94-1581, for Alden Kautz in 94-1581, for Lonnie Haynes in 94-1581, for Jack Hawkins in 94-1581, for Craig C. Eley in 94-1581, for Jon Baraga in 94-1581, for David Aitken in 94-1581, for Am Constitutional in 94-1581 (afw) [94-1576 94-1581]
8/30/95	[881441] Hearing set for November 1995 Session, at Denver. (sls) [94-1576 94-1581]
11/13/95	[898647] Case argued and submitted to Judges Briscoe, Seth, Lucero. (Seth vouched in.) (sls) [94-1576 94-1581]
7/28/97	[1054260] Terminated on the Merits after Oral Hearing; Affirmed (in part) and Reversed (in part); Written, Signed, Published. Briscoe, authoring judge; Seth; Lucero. [94-1576, 94-1581] (nak) [94-1576 94-1581]
8/8/97	[1058331] Petition for rehearing in banc [94-1576, 94-1581] filed by Natalie Meyer and Douglas Brown in 94-1576, and 94-1581. Original and 14 copies. c/s: y. (nak) [94-1576 94-1581]

8/11/97 [1058333] Document [1058331-1] Petition for rehearing in banc filed by Appellees/Cross-Appellants Natalie Meyer and Douglas Brown, in 94-1576 and 94-1581 submitted to panel. (nak) [94-1576 94-1581]

8/18/97 [1060387] Order filed by Judge(s) Briscoe, Lucero - response to the appellees'/cross-appellant's petition for rehearing due 8/28/97 for Bill Orr in 94-1576, for William David Orr in 94-1576, for Alden Kautz in 94-1576, for Lonnie Haynes in 94-1576, for Jack Hawkins in 94-1576, for Craig C. Eley in 94-1576, for Jon Baraga in 94-1576, for David Aitken in 94-1576, for Am Constitutional in 94-1576, for Bill Orr in 94-1581, for William David Orr in 94-1581, for Alden Kautz in 94-1581, for Lonnie Haynes in 94-1581, for Jack Hawkins in 94-1581, for Craig C. Eley in 94-1581, for Jon Baraga in 94-1581, for David Aitken in 94-1581, for Am Constitutional in 94-1581 Parties served by mail. (hrs) [94-1576 94-1581]

9/08/97 [1065891] Order filed by Judges Briscoe, Lucero denying Petition for rehearing in banc [1058331-1] (pdw) [94-1576]

9/16/97 [1068048] Mandate issued to district court. Mandate receipt due 10/16/97 in 94-1581, in 94-1576 (afw) [94-1576 94-1581]

9/18/97 [1069016] Mandate receipt filed. (hrs) [94-1576 94-1581]

12/15/97 [1092400] Petition for writ of certiorari filed on 12/4/97 by Natalie Meyer and Douglas Brown in 94-1576 and 94-1581. Supreme Court Number 97-930. (nak) [94-1576 94-1581]

12/18/97 [1093393] Case file closed. (ccd) [94-1576]

12/22/97 [1094407] Petition for writ of certiorari filed on 12/16/97 by Am Constitutional, David Aitken, Jon Baraga, Craig C. Eley, Jack Hawkins, Lonnie Haynes, Alden Kautz, William David Orr, Bill Orr in 94-1576 and 94-1581. Supreme Court Number 97-992. (nak) [94-1576 94-1581]

1/2/98 [1095962] Respondent's Brief in Opposition to Petitioner's Petition for Writ of Certiorari filed by Appellant's Am Constitutional, David Aitken, Baraga, Craig C. Eley, Jack Hawkins, Lonnie Haynes, Alden Kautz, William David Orr Bill Orr in 94-1576 and 94-1581. Original and 0 copies. c/s: y. (nak) [94-1576 94-1581]

2/27/98 [1110819] Supreme Court order dated 2/23/98 denying certiorari filed. Supreme Court no. 97-992 for the petition filed by Am Constitutional, et al. (hrs) [94-1576 94-1581]

3/2/98 [1110578] Supreme Court order dated 2/23/98 granting certiorari filed. (nak) [94-1576 94-1581]

4/2/98 [1119047] Case file closed. (drw) [94-1576]

Nº 2667

INSTRUCTIONS FOR PETITION CIRCULATORS

USE BLACK INK! Computerized scanners will pick up the information more easily.

1. **READ THE WARNING** at the top of each page.

2. **TO CIRCULATE A PETITION**, you must be a registered voter in Colorado.

3. **TO SIGN A PETITION**, you must be a registered voter in Colorado.

4. A petition circulator must personally observe every registered voter who signs his/her petition.

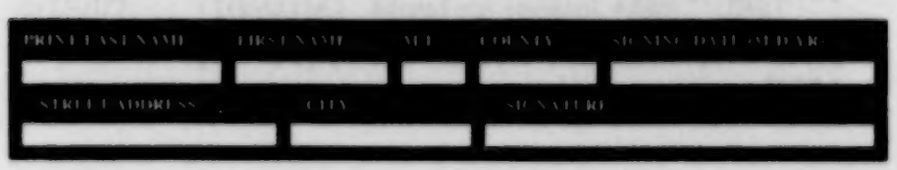
5. There can be only **ONE CIRCULATOR FOR EACH PETITION.**

6. Do not sign your own petition. Sign another one.

7. Do not take apart a petition. If the original staples are removed, **THE PETITION WILL NOT COUNT.**

8. Make certain that all the required information is complete. **A SIGNER MUST USE THE ADDRESS WHERE HE/SHE IS REGISTERED TO VOTE!**

9. As shown below, the new petition form has **TWO LINES** which each signer must complete.



For county abbreviations, use the first four letters except for Montezuma (MONZ) and Montrose (MONR).

10. **A POST OFFICE BOX IS NOT A PLACE OF RESIDENCE.** Street number and name must be provided.

11. If a small correction is made, the signer should initial the change. If a large correction is required, the signer should cross out the incorrect information and proceed to the next two lines.

12. If a signer is disabled and needs assistance, a **THIRD PARTY** should provide that assistance. **THE CIRCULATOR CANNOT ASSIST A SIGNER.**

13. **NO PERSON MAY SIGN FOR ANOTHER.**

14. **EVERY VALID SIGNATURE COUNTS!** A petition does not have to be filled, but does have to be correctly notarized.

15. When the circulator has finished collecting signatures, he/she should take the petition to a Notary Public. The affidavit on the last page should be signed and dated **IN THE PRESENCE OF THE NOTARY PUBLIC**, who will then notarize the affidavit.

16. **NO ADDITIONAL SIGNATURES CAN BE COLLECTED** after the affidavit has been notarized.

17. The notarized petition should be returned **IMMEDIATELY** in person or by mail to:

    Coloradans United for Bears
    841 Front St., Suite 202

WARNING:
IT IS AGAINST THE LAW:

For anyone to sign any initiative or referendum petition with any name other than his or her own or to knowingly sign his or her name more than once for the same measure or to knowingly sign such petition when not a registered elector.

DO NOT SIGN THIS PETITION UNLESS YOU ARE A REGISTERED ELECTOR. TO BE A REGISTERED ELECTOR, YOU MUST BE A CITIZEN OF COLORADO AND REGISTERED TO VOTE.

Do not sign this petition unless you have read or have had read to you the proposed initiative or referred measure or the summary of an initiated measure in its entirety and understand its meaning.

PETITION TO INITIATE

TO: The Honorable Natalie Meyer: Secretary of the State of Colorado

We, the undersigned, registered voters of the State of Colorado, do hereby respectfully order and demand that the following proposed Amendment to the Colorado Revised Statutes be submitted to the legal voters of the State for their adoption or rejection at the polls at the next general election to be held 3 November 1992.

Each signer of this petition states that (s)he is a registered voter of the State of Colorado and that (s)he has shown his/her correct residence address and date of signing on this petition.

The signers of this petition and each of them, hereby designate the following persons to represent them in all matters affecting this petition:

[TEXT CONTD. FROM ORIGINAL]

1. Michael Smith 4641 Almond Lane, Boulder, CO 80301
2. Carol Buchanan 2854 County Road 43ZS, Norwood, CO 81423
3. Susan Cockrell-Grant 209 Orchard Street, Hotchkiss, CO 81419

The ballot title and submission clause as designated and fixed by the Board is as follows:

SHALL THERE BE AN AMENDMENT TO COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME, AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES?	YES	
	NO	

The title as designated and fixed by the Board is as follows:

AN AMENDMENT TO THE COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME, AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES.

[TEXT CONTD. FROM ORIGINAL]

The summary prepared by the Board is as follows:

This measure adds a new section to article 4 of title 33, Colorado Revised Statutes, to make it unlawful for any person to take a black bear by any means, including but not limited to firearms or bow and arrow, from March 1 to September 1 of any calendar year and, in addition, to prohibit the taking of black bear at any time by the use of bait or dogs. Violation of the measure is punishable as a class 1 misdemeanor and, in addition, conviction carries with it a five-year suspension of wildlife license privileges for the first offense and permanent loss of such privileges for second or subsequent offense. Exemptions are provided for employees of the Division of Wildlife and the United States Department of Agriculture while acting in their official capacity and for persons taking black bears in defense of life or property. Existing statutory provisions for the issuance of spring bear hunting licenses are repealed, and the Division of Wildlife is expressly prohibited from adopting regulations which conflict with any of the above provisions.

The measure is not expected to have any significant fiscal impact. A reduction in bear license sales and a corresponding decrease in revenues to the Division of Wildlife are expected, and enforcement of the measure will entail some increase in law enforcement expenses, but both of these effects are difficult to quantify and are expected to be slight.

WARNING:
IT IS AGAINST THE LAW:

For anyone to sign any initiative or referendum petition with any name other than his or her own or to knowingly sign his or her name more than once for the same measure or to knowingly sign such petition when not a registered elector.

DO NOT SIGN THIS PETITION UNLESS YOU ARE A REGISTERED ELECTOR. TO BE A REGISTERED ELECTOR, YOU MUST BE A CITIZEN OF COLORADO AND REGISTERED TO VOTE.

Do not sign this petition unless you have read or have had read to you the proposed initiative or referred measure or the summary of an initiated measure in its entirety and understand its meaning.

PETITION TO INITIATE

The ballot title and submission clause as designated and fixed by the Board is as follows:

SHALL THERE BE AN AMENDMENT TO COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME, AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES?

BE IT ENACTED BY THE PEOPLE OF THE STATE OF COLORADO:

The Colorado Revised Statutes are amended to read:

SECTION 1. Article 4 of title 33, Colorado Revised Statutes, 1984 Repl. Vol., as amended, is amended BY THE ADDITION OF A NEW SECTION to read:

33-4-101.3. Black Bears - declaration of intent - spring season hunting prohibited - prohibited means of taking - penalty. (1) IT IS THE INTENT OF THE VOTERS OF COLORADO IN ADOPTING THIS MEASURE TO PROHIBIT THE TAKING OF BLACK BEARS WHEN FEMALE BLACK BEARS ARE REARING THEIR CUBS. IT IS THE FURTHER INTENT OF THE VOTERS OF COLORADO TO PROMOTE THE CONCEPT OF FAIR CHASE IN THE TAKING OF BLACK BEARS BY ELIMINATING THE USE OF BAIT AND DOGS. IN CONSIDERING PROPOSED CHANGES TO THE RESTRICTIONS ON THE TAKING OF BLACK BEARS WHICH ARE ESTABLISHED IN THIS MEASURE, THE COLORADO GENERAL ASSEMBLY SHALL TAKE NOTICE OF THE FACT THAT THIS MEASURE WAS ADOPTED BY A VOTE OF THE PEOPLE AT THE 1992 GENERAL ELECTION.

(2) DURING THE PERIOD FROM MARCH 1 THROUGH SEPTEMBER 1 OF ANY CALENDAR YEAR, IT IS UNLAWFUL FOR ANY PERSON TO TAKE A BLACK BEAR BY ANY MEANS INCLUDING BUT NOT LIMITED TO FIREARM OR BOW AND ARROW.

(3) IT IS UNLAWFUL FOR ANY PERSON TO TAKE A BLACK BEAR WITH THE USE OF BAIT, OR WITH THE USE OF ONE OR MORE DOGS, AT ANY TIME DURING ANY CALENDAR YEAR. IN THE EVENT

THAT A DOG OR DOGS ACCIDENTALLY CHASES A BLACK BEAR WHILE THE OWNER OR PERSON IN CONTROL OF SUCH DOG OR DOGS IS IN LEGAL PURSUIT OF OTHER GAME, SUCH OWNER OR PERSON IN CONTROL OF THE DOG OR DOGS SHALL NOT BE CHARGED WITH THE ILLEGAL TAKING OF A BLACK BEAR SO LONG AS THE DOG OR DOGS ARE CALLED OFF AS SOON AS THE MISTAKE IS REALIZED AND THE BLACK BEAR IS NOT INJURED OR KILLED.

(4) THE PROVISIONS OF THIS SECTION SHALL NOT APPLY TO EMPLOYEES OF THE DIVISION OF WILDLIFE OR TO FIELD AGENTS OF THE UNITED STATES DEPARTMENT OF AGRICULTURE, WHEN SUCH EMPLOYEES OR AGENTS ARE ACTING IN THEIR OFFICIAL CAPACITY, NOR SHALL THIS SECTION APPLY TO ANY PERSON WHO LAWFULLY TAKES A BLACK BEAR IN DEFENSE OF LIFE OR PROPERTY, OR TO ANY PERSON WHO TRAPS, KILLS, OR OTHERWISE DISPOSES OF A BLACK BEAR IN ACCORDANCE WITH SECTION 33-3-106(3).

(5) FOR PURPOSES OF THIS SECTION, "BAIT" MEANS TO PLACE, EXPOSE, DEPOSIT, DISTRIBUTE, OR SCATTER SALT, MINERALS, GRAIN, ANIMAL PARTS, OR OTHER FOOD, SO AS TO CONSTITUTE A LURE, ATTRACTION, OR ENTICEMENT FOR BLACK BEARS ON OR OVER ANY AREA WHERE HUNTERS ARE ATTEMPTING TO TAKE BLACK BEARS.

(6) ANY PERSON WHO VIOLATES ANY PROVISION OF THIS SECTION IS GUILTY OF A CLASS 1 MISDEMEANOR AND, UPON CONVICTION THEREOF, SHALL BE PUNISHED AS PROVIDED IN SECTION 18-1-106, C.R.S. IN ADDITION, PERSONS

[TEXT CONTD. FROM ORIGINAL]

CONVICTED PURSUANT TO THIS SECTION SHALL HAVE THEIR WILDLIFE LICENSE PRIVILEGES SUSPENDED FOR FIVE YEARS AND PERSONS CONVICTED OF A SECOND OR SUBSEQUENT OFFENSE PURSUANT TO THIS SECTION SHALL HAVE THEIR WILDLIFE LICENSE PRIVILEGES SUSPENDED PERMANENTLY.

SECTION 2. Section 33-1-106(1)(a), Colorado Revised Statutes, 1984 Repl. Vol., is amended to read:

33-1-106. Authority to regulate taking, possession, and use of wildlife. (1) In order to provide an adequate, flexible, and coordinated statewide system of wildlife management and to maintain adequate and proper populations of wildlife species, the commission shall have authority in this state, by appropriate rules and regulations, to:

(a) Determine under what circumstances, when, in which localities, by what means, what sex of, and in what amounts and numbers the wildlife of this state may be taken and, further, to shorten, extend, or close seasons on any species of wildlife in any specific locality or the entire state when it finds after investigation that such action is necessary to assure maintenance of adequate populations of wildlife or to preserve the proper ecological balance of the environment. IN NO EVENT, HOWEVER, SHALL THE COMMISSION ADOPT ANY REGULATION CONCERNING THE TAKING OF BLACK BEARS WHICH IS IN CONFLICT WITH THE PROVISIONS OF SECTION 33-4-101.3.

SECTION 3. 33-4-102(1)(n), Colorado Revised Statutes, 1984 Repl. Vol., as amended is repealed as follows:

[TEXT CONTD. FROM ORIGINAL]

33-4-102. Types of licenses and fees. (1) The division is authorized to issue the following resident and nonresident licenses and shall collect the following fees therefor:

	Fees	
	Resident	Nonresident
(n) ~~Bear, spring~~	~~$20.00~~	~~$150.00~~

PETITION TO INITIATE

The ballot title and submission clause as designated and fixed by the Board is as follows:

SHALL THERE BE AN AMENDMENT TO COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES?	YES	
	NO	

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DO NOT SIGN THIS PETITION UNLESS YOU ARE A REGISTERED ELECTOR. TO BE A REGISTERED ELECTOR, YOU MUST BE A CITIZEN OF COLORADO AND REGISTERED TO VOTE.

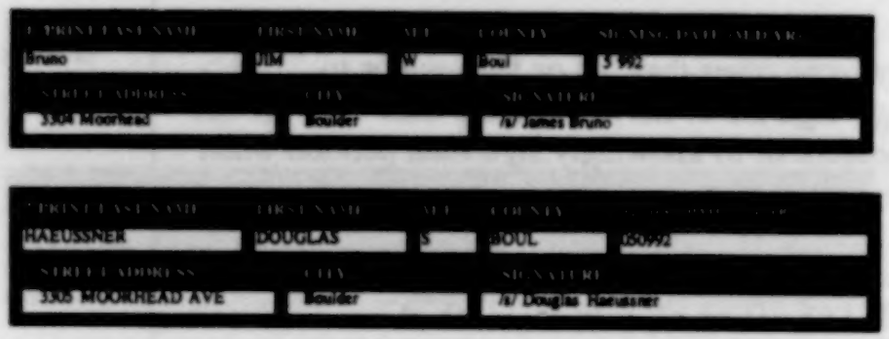
Do not sign this petition unless you have read or have had read to you the proposed initiative or referred measure or the summary of an initiated measure in its entirety and understand its meaning.

PETITION TO INITIATE

The ballot title and submission clause as designated and fixed by the Board is as follows:

SHALL THERE BE AN AMENDMENT TO COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME, AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES?	YES	
	NO	

[TEXT CONTINUED FROM ORIGINAL]



[ADDITIONAL SIGNATURES OMITTED]

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Do not sign this petition unless you have read or have had read to you the proposed initiative or referred measure or the summary of an initiated measure in its entirety and understand its meaning.

PETITION TO INITIATE

The ballot title and submission clause as designated and fixed by the Board is as follows:

SHALL THERE BE AN AMENDMENT TO COLORADO REVISED STATUTES TO PROHIBIT THE TAKING OF BLACK BEARS BY THE USE OF BAIT OR DOGS AT ANY TIME, AND TO PROHIBIT THE TAKING OF BLACK BEARS BY ANY MEANS BETWEEN MARCH 1 AND SEPTEMBER 1 OF ANY CALENDAR YEAR, AND SUBJECTING VIOLATORS TO MISDEMEANOR PENALTIES AND A LOSS OF HUNTING PRIVILEGES?	YES	
	NO	

[TEXT CONTINUED FROM ORIGINAL]

PRINT LAST NAME	FIRST NAME	MI	COUNTY	
REYES	JESUS	A	ADAM	050992
STREET ADDRESS	CITY	SIGNATURE		
7508 Sherman St.	Denver	/s/ J. Adam Reyes		

PRINT LAST NAME	FIRST NAME	MI	COUNTY	
WEAVER	LAURIANNE	M	BOUL	050992
STREET ADDRESS	CITY	SIGNATURE		
1115 Emery #18	Longmont	/s/ Laurianne M. Weaver		

[ADDITIONAL SIGNATURES OMITTED]

AFFIDAVIT OF CIRCULATOR

. . . ATHLEEN K DUFFY , swear that I reside at:
. . . ulator Printed Name)

. . . 30 31ST ST
Street Number and Name

. . . lder BOULDER 80303
City County Zip Code

. . . d elector at the time this section of the petition was circulated and signed by . . . hat I have circulated the foregoing petition section; that each signature . . . y presence; that each signature thereon is the signature of the person . . . rts to be that to the best of my knowledge and belief each of the persons . . . section was at the time of such signing a registered elector of the State of . . . ave not nor will I pay in the future and I believe that no other person has so . . . ctly or indirectly, any money or other thing of value to any signer for the . . . r causing such signer to affix his signature to such petition.

/s/ . . . athleen K. Duffy 5-9-92
Signature of Circulator Date of Signing

. . . O
Boulder

. . . sworn to before me this 9th day of May 19 92.

/s/ Alexa [Illegible]
Notary Public
My commission expires: 4/21/96

[ERRORS IN ORIGINAL. SEE FOLLOWING PAGE FOR CORRECT TEXT]

AFFIDAVIT OF CIRCULATOR

I, Joelyn M. Smith , swear that I reside at:
(Circulator Printed Name)

6622 Marshall St.
Street Number and Name

Arvada Jefferson 80003
City County Zip Code

that I was a registered elector at the time this section of the petition was circulated and signed by the listed electors; that I have circulated the foregoing petition section; that each signature thereon was affixed in my presence; that each signature thereon is the signature of the person whose name it purports to be; that to the best of my knowledge and belief each of the persons signing said petition section was at the time of such signing a registered elector of the State of Colorado and that I have not nor will I pay in the future and I believe that no other person has so paid or will pay directly or indirectly, any money or other thing of value to any signer for the purpose of inducing or causing such signer to affix his signature to such petition.

/s/ Joelyn M. Smith 1/28/94
Signature of Circulator Date of Signing

STATE OF COLORADO
COUNTY OF Jefferson

Subscribed and sworn to before me this 28th day of January 19 94.

/s/ Eileen R. Abeyta
Notary Public
My commission expires: 10/08/94
(SEAL)

STATE OF COLORADO

DEPARTMENT OF STATE

UNITED STATES OF AMERICA,
STATE OF COLORADO [//BRACKET//] CERTIFICATE

I, **NATALIE MEYER,** *Secretary of State of the State of Colorado, do hereby certify*

that pursuant to F.R.C.P 44, F.R.E. 902(4), the following petition section of an Initiative concerning black bears, noted as Defendant's Exhibit C, is a true copy of a document authorized by law to be recorded which was actually filed in the Office of Secretary of State.

IN TESTIMONY WHEREOF *I have hereunto set my hand and affixed the Great Seal of the State of Colorado, at the City of Denver this* 23 *day of* June *A.D.* 94

/s/ Natalie Meyer
SECRETARY OF STATE

WORKERS CHOICE OF CARE AMENDMENT

3850 East Wesley Avenue • Denver Colorado 80210

[//Seal//]

The Honorable Natalie Meyer
Secretary of State
1560 Broadway, Ste 200
Denver, Colorado 80202

August 9, 1993

Dear Madam Secretary;

We are submitting the original copies of the CRA-4 report and the petition circulator aggregate report and the petition circulator monthly disclosure report. They are the originals which were transmitted to your office via fax on August 2, 1993.

The vendor I used, National Voter Outreach (NVO), gave me type written reports of the circulator disclosure reports and I would like to submit them to your office as they are easier to read. Please make note that there were some spelling errors and math errors on the hand written copies which were corrected on the typed copies. Also make note that the amounts paid to the circulators are the same on the typed copies and the handwritten copies.

Anita Gail, treasurer for the Committee for Choice, and I realize we are liable for the original reports and we signed them believing they were totally correct in spelling and in math. Please advise us of the penalties due us.

[TEXT CONTD. FROM ORIGINAL]

I can be reached at 722-1306 if there are any questions.

Sincerely,

/s/ Jack Hawkins

Jack Hawkins
Chair, Committee for Choice

Paid for by THE COMMITTEE FOR CHOICE - Jack Hawkins, Chair, Anita Gail, Treasurer

REPORT OF CONTRIBUTIONS AND EXPENDITURES

Colorado Campaign Reform Reporting Form for Political Committees

1. Name of Committee: Committee for Choice

Address: 3850 E WESLEY AVE

2. CRA IDENTIFICATION NO.: 93-12-00008

CITY, STATE AND ZIP CODE: Denver CO 80210

3. NAME OF BANK & ACCT NO.: UNION BANK & TRUST 1280630

4. TYPE OF REPORT

a. ____ Pre General Report Aug 2 19 93

Amended Report For: _____

____ Post _____ Report _____ 19 _

____ Pre _____ Report _____ 19 __

__ Termination Report For Election Year ___

____ Post _____ Report _____ 19 __

____ ANNUAL REPORT FOR ELECTION YEAR _____

5. SUMMARY Rept Period Covered 02/19/93 to 08/02/93	COLUMN A This Report	COLUMN B Accumulative Total
5(a) Beginning Balance or Deficit	$ Ø	xxxxxxxxxxxxxxxx
(b) TOTAL CONTRIBUTIONS	$ 85108.50	$ 85108.50
(c) TOTAL EXPENDITURES	$ 74306.15	$ 74306.15
(D) ENDING BALANCE or DEFICIT	$ 10802.35	xxxxxxxxxxxxxxxx

I certify that I have examined this Report and to the best of my knowledge and belief it is true, correct and complete.

ANITA GAIL

(Type or Print Name of Treasurer)

/s/ Anita Gail — 02 Aug 93

Signature of Treasurer — Date

[TEXT CONTD. FROM ORIGINAL]

NOTE: Submission of false, erroneous, or incomplete information may be subject to C.R.S. 1-45-121.

CRA-4
Revised 6/91

DETAILED SUMMARY PAGE

I. CONTRIBUTIONS - USE SCHEDULE A

(7) Contributions (Other than Loans		
(a) Total Itemized	$ 85108.50	
(b) Total Non-Itemized	$ Ø	
(8) Transfers of funds from other Accts.	$ Ø	
(9) Pledges		
(a) Received	$ Ø	
(b) Receivable		$ Ø
(10) Loans		
(a) Itemized	$ Ø	
(b) Non-Itemized	$ Ø	
(11) Offsets To Operating Expenditures		
(a) refunds, rebates, etc.	$ Ø	
(b) Other person purchase of stamps, sign material or items not returnable		$ Ø
(12) Other Contributions (dividends, interest)	$ Ø	
(13) TOTAL CONTRIBUTIONS	$ 85108.50	
(14) Contributions In-Kind		
(a) Itemized		$ Ø
(b) Non-Itemized		$ Ø

II. EXPENDITURES - USE SCHEDULE B

(15) Expenditures:		
(a) Itemized	$ 74306.50	
(b) Non-Itemized	$ Ø	

[TEXT CONTD. FROM ORIGINAL]

(16) Transfers to Other Political Committee(s)	$ ∅	
(17) Loan Repayments	$ ∅	
(18) Payments to Circulators (Issue Committees Only)	$ 69,000.00	
(19) TOTAL EXPENDITURES	$ 74306.50	
III. CASH FLOW		
(20) BEGINNING BALANCE/DEFICIT	$ ∅	(+ or -)
(21) TOTAL CONTRIBUTIONS (Line 13)	$ 85108.50	(+)
(22) TOTAL EXPENDITURES (Line 19)	$ 74306.15	(-)
(23) ENDING CASH BALANCE/DEFICIT		$ 10802.3...

AGGREGATE DISCLOSURE REPORT OF INITIATIVE/REFERRENDA PETITION CIRCULATORS

Proponents at the time of filing a petition are statutorily required to file a disclosure form pursuant to C.R.S. 1-40-121(1).

NAME OF PROPONENT #1Jack Hawkins #2Anita Gail
(as shown on the original draft of the petition - named as the representative)

NAME OF ISSUE WORKERS CHOICE OF CARE AMENDMENT
REPORT SUBMITTED 08/02/93
TIME FRAME COVERED 02/93 thru 08/93

*CIRCULATOR INFORMATION

*Complete Name	*Street#, Name, City & State	*County	Amt pd. per signature	Total Pymt
Pete Andrianakos	2101 S Depew Denver CO 80227	Denver	.40	$132.00
Francine Betterton	2700 W. Mexico Denver CO 80219	Denver	"	$18.80
Sean Bolsinger	401 Mtn. Chicka Dee Highland Rach 80126	Jefferson	"	$42.00
Sandra Boulde	11849 N. Washington #402 Northglenn CO 80233	Brighton	"	$95.60
James Brishbran	2537 Curtis St. Denver CO 80205	Denver	"	$22.40
B. Bruce Black	815 Ogden Denver CO 80218	DENV	"	301.60

[TEXT CONTD. FROM ORIGINAL]

Paul Van Beusichen	7505 W. Vassar Lakewood CO. 80227	JEFF	"	$356.80
Joshua Deprez	2024 W. 64th #3-108 Denver CO	DENV	"	$367.20
Maria J. Fay	2575 S Syracuse Way Denver Co 80231	DENV	"	$433.80
David Freeman	12900 E. Colfax #8 Aurora CO 80231	ARAP	"	$390.00
Howard Friedman	2575 S. Syracuse #m-106 Denver CO 80231	DENV	"	$1390.00
Hope Gale	40 Ogden #212 Denver CO 80218	DENV	"	$309.20
Jesse Gamevda	5971 E 100th Thornton CO 80229	ADAMS	"	$132.00

SUB-TOTAL $3991...

We certify that we have examined this Report and to the best of our knowledge and belief it is true, correct and complete.

/s/ Jack Hawkin
Signature of Representative #1 (Proponent)

DATE 8/2/93

x /s/ Anita Gail
Signature of Representative #2 (Proponent)

DATE X 02 Aug 93

*** Information required by this section shall be as it appears on the books of the count clerk and recorder**

NOTE: Submission of false, erroneous, or incomplete information shall subject the person signing this Report to the penalties of Article 1, Title 45.

*CIRCULATOR INFORMATION

*Complete Name	*Street#, Name, City & State	*County	Amt pd. per signature	Total Pymt
HEATHER BANVILLE	1015 FONTMORE RD C/S CO 80904	ELPA	.40	$158.40
SUSAN BAXTER	1498 FIRST RD PUEBLO CO 81007	PUEB	"	$138.00
DONNA BURNS	2210 W. BAPTIST C/S CO 80921	EL PASO	"	$21.60
BRENDA CHAVEZ	1190 LENMAR C/S CO 80906	EL PASO	"	$13.00
JAMES COOPER	1015 FONTMORE C/S CO 80904	EL PASO	"	$135.60
ISABELLA DOMIER	906 S. SAHWATCH C/S CO 80903	EL PASO	"	$56.40
WILLIAM FEHEINLER	QTRS 7219A FORT CARSON 80913	EL PASO	"	$114.00
JOE FLEET	4670 PICTURESQUE CIR COLO SPGS 80917	EL PASO	"	$49.20
DAN FOLEY	29905 McDANIELS CALHAN 80808	EL PASO	"	$80.00
SHERI FRAZIER	854 CHAPMAN C/S CO 80916	EL PASO	"	$79.20
CAROLYN FRENGEL	3155 WOODLAND HILLS #919 C/S CO 80918	EL PASO	"	$28.80

[TEXT CONTD. FROM ORIGINAL]

CARL FRITZEN	475 W. 7th ST PENROSE 81240	EL PASO	"	$702.20
ROBERT GIBBS	2314 ROBIN DR C/S 80909	EL PASO	"	$886.00
TERESSA GRIOGS	4620 HINSDALE C/S CO 80917	EL PASO	"	$12.20
JAMES ("JIMMY") GRODSTSKI	515 E PLATTE C/SPRG, 80909	EL PASO	"	$468.40
DAN GUSTAFSON	1605 E BUENA VENTURA C.S. CO 80909	EL PASO	"	$37.60
LORRAINE HUNEKE	1860 DORTMUND C.S. CO. 80918	EL PASO	"	$85.60
JUDITH JEWEL	3546 E CARE FREE CIR. C/SPRINGS 80917	EL PASO	"	$1695.4. . .
DANIEL KENNEDY	2005 FINCH CT C.S. CO. 80909	EL PASO	"	$120.80
MARK LATTA	1802 MONTEREY C.S. CO. 80910	EL PASO	"	$97.20
LYUNG LEE	4680 TEMPLETON PARK C/S 80917	EL PASO	"	$50.00

SUB-TOTAL $5084....

GRAND TOTAL $

*** Information required by this section shall be as it appears on the books of the count . . . Clerk and recorder**

MONTHLY DISCLOSURE REPORT of PAYMENTS TO OR PAYMENTS OWED TO INITIATIVE PETITION CIRCULATORS

Proponents of an initiative/referendum are statutorily required to file monthly reporting forms for any payments to or any payments owed to initiative/referendum petition circulators. This report is be due on the 10th of each month for the preceding calendar month and is filed with the with the Designated Election Official with whom the petition is filed.

NAME OF PROPONENT #1Jack Hawkins #2Anita Gail
(as shown on the original draft the petition - named as the representative)

NAME OF ISSUE Workers Choice of Care Amendment

REPORTING PERIOD: (check one)

[ ] Jan. 10, 19__ [ ] Apr. 10, 19__ [x] July 10, 19__ [ ] Oct. 10, 19__

[ ] Feb. 10, 19__ [ ] May 10, 19__ [ ] Aug. 10, 19__ [ ] Nov. 10, 19__

[ ] Mar. 10, 19__ [ ] June 10, 19__ [ ] Sept. 10, 19__ [ ] Dec. 10, 19__

*NAME OF CIRCULATOR	*RESIDENCE ADDRESS	BUSINESS ADDRESS	CIRCULATOR AMT PD	CIRCULATOR AMT OWED
Francine Betterton	2700 W Mexico Denver CO 80219	5777 E. Evans Denver Co 80222	15.00	Ø
Sean Bolsinger	401 Mtn Chicka Dee RD Highlands Ranch 80126	"	32.60	Ø

[TEXT CONTD. FROM ORIGINAL]

Sandra Boulde	11349 N. Wash ngton	•	Ø	95.60
	Northglenn 80233	•		
John Brishbon	2537 Curtis		6.40	Ø
	Denver 80205	•		
Bruce Black	815 Ogden		284.20	Ø
	Denver CO 80218	•		
Marie J. Fay	2575 S. Syracuse Way		110.6	Ø
	Denver CO 80231	•		
David Freeman	12900 E. Colfax #8		142.40	Ø
	ArouRA CO 80011	•		
Howard Frieman	2575 S. Syracuse Way		473.60	Ø
	Denver CO 80231	"		
Hope Gale	40 Ogden #212	•	149.20	Ø
	Denver CO 80218			

We certify that we have examined this Report and to the best of our knowledge and belief it is true, correct and complete.

/s/ Jack Hawkin
Signature of Representative #1 (Proponent)

DATE 8/2/93

X /s/ Anita Gail
Signature of Representative #2 (Proponent)

DATED X 02 Aug 93

*** Information required by this section shall be as it appears on the books of the county clerk and recorder**

[TEXT CONTINUED FROM ORIGINAL]

NOTE: Submission of false, erroneous, or incomplete information may subject the person signing this Report to the penalties of Article 1, Title 45.

MONTHLY DISCLOSURE REPORT
of
PAYMENTS TO OR PAYMENTS OWED TO
INITIATIVE PETITION CIRCULATORS

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NAME OF PROPONENT: #1 **Jack Hawkins** #2 **Anita Gail**
(as shown on the original draft of the petition - named as the representatives)

NAME OF ISSUE: **WORKERS CHOICE OF CARE AMENDMENT**

REPORTING PERIOD: (check one)

[ ] Jan. 10, 19__ [ ] Apr. 10, 19__ [ ] July 10, 19__ [ ] Oct. 10, 19__
[ ] Feb. 10, 19__ [ ] May 10, 19__ [x] **Aug. 10, 1993** [ ] Nov. 10, 19__
[ ] Mar. 10, 19__ [ ] June 10, 19__ [ ] Sept. 10. 19__ [ ] Dec. 10, 19__

NAME OF CIRCULATOR	RESIDENCE ADDRESS	BUSINESS ADDRESS	AMT PD	AMT OWED
Francine Betterton	2700 W Mexico Ave Denver 80219	5777 E Evans #6 Denver, 80222	15.00	Ø
Sean Boslinger	401 Mtn. Chicka Dee Rd Highlands Ranch, 80216	5777 E Evans #6 Denver, 80222	32.60	Ø
Sandra Boulde	11849 N. Washington Northglenn	5777 E Evans #6 Denver, 80222	Ø	95.60

[TEXT CONTD. FROM ORIGINAL]

John Brishbon	2537 Curtis Denver 80218	5777 E Evans #6 Denver, 80222	6.40	Ø
Bruce Black	815 Ogden Denver 80218	5777 E Evans #6 Denver, 80222	284.20	Ø

We certify that we have examined this Report and to the best of our knowledge and belief it is true, correct and complete.

/s/ Jack Hawkin
Signature of Representative #1 (Proponent)

DATE 8/9/93

/s/ Anita Gail
Signature of Representative #2 (Proponent)

DATE 06 Aug 93

* **Information required by this section shall be as it appears on the books of the county clerk and recorder**
NOTE: Submission of false, erroneous, or incomplete information may subject the persons signing this Report to the penalties of Article 1, Title 45.

AGGREGATE DISCLOSURE REPORT
of
INITIATIVE/REFERENDA PETITION CIRCULATOR

Proponents at the time of filing a petition are statutorily required to file a disclosure form pursuant to C.R.S. 1-40-121(1).

NAME OF PROPONENT: #1 **Jack Hawkins #2 Anita Gail**

NAME OF ISSUE: **WORKERS CHOICE OF CARE AMENDMENT**

REPORT SUBMITTED_____ TIME FRAME COVERED: 0/2/93-08-93

***CIRCULATOR INFORMATION**

NAME OF CIRCULATOR	RESIDENCE ADDRESS	COUNTY	Amount paid per signature	TOTAL PYMT
Pete Andrianakos	2101 S Depew Denver 80227	Denver	.40	132.00
Francine Betterton	2700 W Mexico Ave. Denver 80219	Denver	.40	18.80
Sean Boslinger	401 Mtn. Chicka Dee Rd Highland Ranch CO 80216	Jefferson	.40	42.00
Sandra Boudle	11849 N Washington #402 Northglenn, 80233	Adams	.40	95.60
John Brishbon	2537 Curtis Denver 80218	Denver	.40	22.40
Bruce Black	815 Ogden Denver 80218	Denver	.40	301.60
Paul Van Beusichen	7505 W Vassar Lakewood	Jefferson	.40	356.80
Joshua Deprez	2024 W 64th #3108 Denver 80231	Denver	.40	367.20
Maria J Fay	2575 S Syracuse Way #B207, Denver 80231	Denver	.40	433.80

[TEXT CONTD. FROM ORIGINAL]

David Freeman	12900 E Colfax #8 Aurora, CO 80011	Arapahoe	.40	390.00
Howard Friedman	2575 So Syracuse Way #M-106, Denver 80231	Denver	.40	1390.00
				3550.20

We certify that we have examined this Report and to the best of our knowledge and belief it is true, correct and complete.

/s/ Jack Hawkin
Signature of Representative #1 (Proponent)

DATE 8/9/93

/s/ Anita Gail
Signature of Representative #2 (Proponent)

DATE 06 Aug 93

*** Information required by this section shall be as it appears on the books of the county clerk and recorder**

NOTE: Submission of false, erroneous, or incomplete information may subject the person signing this Report to the penalties of Article 1, Title 45.

STATE OF COLORADO

DEPARTMENT OF STATE

UNITED STATES OF AMERICA,
STATE OF COLORADO [//BRACKET//] CERTIFICATE

I, **NATALIE MEYER,** *Secretary of State of the State of Colorado, do hereby certify*

that pursuant to F.R.C.P. 44, F.R.E. 902(4), the following Campaign Reform Act filing, noted as Defendant's Exhibit K, is a true copy of a document authorized by law to be recorded and which was actually filed in the Office of Secretary of State.

IN TESTIMONY WHEREOF *I have hereunto set my hand and affixed the Great Seal of the State of Colorado, at the City of Denver this* 23 *day of* June *A.D.* 94

/s/ Natalie Meyer

SECRETARY OF STATE